

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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ALFRED MOORE

Plaintiff

-against-

THE CITY OF NEW YORK
DETECTIVE SALVATORE BELLOMO,
DETECTIVE DENNIS MOONEY
and POLICE OFFICER JOHN DOE 1-10

FIRST AMENDED COMPLAINT
PLAINTIFFS DEMAND
TRIAL BY JURY

11-cv 7771 (RWS)

Defendants
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PRELIMINARY STATEMENT

1. This is a civil action for damages brought pursuant to redress the deprivation by defendants of the rights secured to plaintiff under the Constitution and laws of the United States and State of New York. The defendants, upon information & belief, without a warrant and without probable cause, unlawfully arrested and falsely imprisoned the plaintiff, Alfred Moore an African American male. This is not the first time the plaintiff has been falsely arrested by New York City Police Officers; this has happened on at least two other occasions. In this cation, the plaintiff was arrested and charged with drug offenses upon a criminal court complaint which, by any fair reading, states no probable cause to arrest him. He spent approximately 48 hours in jail before being released upon \$500.00 bail. The plaintiff did not consent to the confinement and it was not otherwise privileged.. After approximately eight appearances in Richmond County Criminal Court before Judge Sciarrino , Part AP- 2, on July 28, 2009. By the filing of this complaint, the plaintiff now alleges that the City of New York & the New York City Police Department violated his rights under 42 USC Section 1983, the 4th Amendment of the United States Constitution and New York State law.

2. That the jurisdiction of this Court is invoked under the provisions of Section 1331 & 1343 of Title 28 and Sections 1983 & 1988 of Title 42 of the United States Code . Plaintiff further invokes the supplemental jurisdiction of this Court pursuant to 28 USC Section 1367 to hear and decide their New York State Law claims of false arrest and the intentional infliction of mental & emotional distress against the individual defendant police officers. These state law claims form part of the same case and controversy as plaintiff's federal claims under Article III of the United States Constitution.

3. Because plaintiff's state law claims are brought only against the individual defendant police officers and allege intentional conduct, no notice of claim is required. In suits against municipal or county employees, as opposed to suit against municipalities themselves, " service of the notice of claim upon the public corporation shall be required only if the corporation has a statutory obligation to indemnify such person under this chapter or any other provision of law" N.Y. Gen. Mun. Law Section 50- e (1) n(b)

PARTIES

4. That at all times hereinafter mentioned, the plaintiff ALFRED MOORE was and still is a resident of the City & State of New York.

5. Upon information and belief the defendant THE CITY OF NEW YORK was and is a municipal corporation organized and existing under the laws of the City and State of New York.

6. That the defendant DETECTIVE SALVATORE BELLOMO SH # 1735 was & is an agent, servant & employee of the defendant THE CITY OF NEW YORK.

7. That the defendant DETECTIVE DENNIS MOONEY was & is an agent, servant & employee of the defendant THE CITY OF NEW YORK.

8. That the defendants POLICE OFFICERS JOHN DOE 1-10 were and are agents, servants & employees of the defendant THE CITY OF NEW YORK.

STATEMENT OF RELEVANT FACTS

9. That on or about the 3rd day of November, 2008, the plaintiff was lawfully at or near the 500 block of Targee Street, County of Richmond, City & state of New York.. The plaintiff was committing no crime at that time and was not acting in a suspicious manner.

10. That while at the aforesaid time and place the plaintiff was unlawfully and without just cause, approached, accosted, and arrested by the aforementioned officers of THE NEW YORK CITY POLICE DEPARTMENT who were agents, servants and employees of the defendant THE CITY OF NEW YORK who were acting under color of law during the aforesaid transactions.

11. That the plaintiff was wrongfully incarcerated for approximately forty eight hours from the date & time of his arrest, The false charges brought against the plaintiff by the defendants included but were not limited to violation of New York state Penal Law 221.20, Criminal Possession of Marijuana in the Third Degree, PL 221.10 (2) Criminal Possession of Marijuana in the Fifth Degree and Unlawful Possession of Marajuana.The Richmond County Criminal Court Docket number was 2008 RI011039.

12. While the plaintiff was being held, his designated “arresting officer” Detective Salvatore Bellomo, with the acquiescence of other defendants, misrepresented facts in the police reports and other documents that the plaintiff had committed drug offenses when in fact this was not true.

13. Upon information and belief, defendant’s motives in filing these false charges was to cover up their misconduct, obtain overtime compensation and obtain credit for a narcotics arrest.

14. Upon information and belief, defendant’s misrepresented to the Richmond County District Attorney and the Criminal Court of the City of New York that the plaintiff had committed drug offenses. Their.Motives in filing these false charges was to cover up their misconduct, obtain overtime compensation and obtain credit for a narcotics arrest.

15. That the aforesaid misrepresentations and perjury led a Judge of the Criminal Court of the City of New York to set \$500.00 bail at the arraignment of the plaintiff at 67 Targee Street, County of Richmond and City of New York. After about eight court appearances, the case was dismissed before Judge Sciarraino on or about July 28, 2009.

16. That by reason of the foregoing the plaintiff suffered wrongful incarceration, loss of liberty, and suffered serious and severe psychological injuries some of which, upon information & belief are permanent in nature.

FIRST CLAIM FOR FALSE ARREST

17. Plaintiff repeats the foregoing allegations.

18. At all relevant times, plaintiff had not committed any crime or offense and did not act in a suspicious manner.

19. Despite the innocence of the plaintiff, the defendants arrested him and or failed to intervene to prevent said false arrest.

20. Accordingly, defendant are labile to plaintiffs under the Fourth Amendment.

SECOND CLAIM FALSE ARREST UNDER STATE LAW

21. Plaintiff repeats the foregoing allegations

22. At all relevant times, plaintiff had not committed any crime or offense and did not act in a suspicious manner.

23. Despite the innocence of the plaintiff, the defendants arrested him and or failed to intervene to prevent said false arrest.

24. Accordingly, defendant are labile to plaintiffs under New York State for false arrest. the Fourth Amendment.

THIRD CLAIM INTENTIONAL INFLECTION OF MENTAL & EMOTIONAL DISTRESS

25. Plaintiff repeats the foregoing allegations

26. At all relevant times, plaintiff had not committed any crime or offense and did not act in a suspicious manner.

27. Despite the innocence of the plaintiff, the defendants arrested him and or failed to intervene to prevent said false arrest.

28. Accordingly, defendant are labile to plaintiffs under New York State for false arrest. the Fourth Amendment.

29. Defendant's actions in making false allegations against the plaintiff, in arresting him, in incarcerating him, in forcing him to make repeated appearances in court before this case was dismissed, amounts to conduct intolerable in a civilized society which has caused the plaintiff emotional distress.

30. Accordingly, the individual defendants are liable to the plaintiff under the law of the state of New York for the intensional infliction of mental distress.

31. Despite the innocence of the plaintiff, the defendants arrested him and or failed to intervene to prevent said false arrest.

32. Accordingly, defendant are labile to plaintiffs under New York State for false arrest. the Fourth Amendment.

FOURTH CLAIM

33. Plaintiff repeats the foregoing allegations

34. In the manner as aforesaid, each of the defendants, jointly & severally, acted maliciously, willfully and wantonly, and outside the scope of his jurisdiction, although under color of law, and violated the following rights of the plaintiff; to be free from unreasonable arrest & seizure, from warrantless arrest, search & seizure, summary punishment without trial & due process of law.

35. Defendants, its agents servants and employees, by their conduct herein

alleged, intentionally, willfully and without justification, and under color of law did deprive the plaintiff of his rights, privileges and immunities secured to him by the Constitution and the laws of the United States, and by 42 U.S.C. Sections 1983 & 1988 and by the statutes and laws of the state of New York which are invoked under the pendant jurisdiction of this Court.

FIFTH CLAIM- MONELL VIOLATION

36. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

37. That the City of New York is a “person” within the meaning of 42 USC Section 1983.

38. That City of New York, through a policy, practice or custom, directly cause the constitutional violations suffered by the plaintiff.

39. Upon information & belief, the City of New York, at all relevant times, was aware that the defendants and other members of the NYPD, particular officers assigned to narcotics enforcement units and lawless officers who have previously committed acts similar to those herein complained of, have a tendency and predisposition for unlawful, illegal and unconstitutional conduct. And or have been poorly trained, supervised and disciplined.

40. A number of members of the New York City Police Department have been convicted of crimes involving corruption, perjury, making false allegations against civilians and other criminal activity.

41. In the year 2011, former Brooklyn South Narcotics Division officer Jerry Bowen was convicted of homicide and attempted murder while he was under indictment for other crimes.

42. Former NYPD Commissioner Bernard Kerik was convicted of corruption related crimes in connection with his employment with the NYPD and served time in federal prison.

43. In *Colon v the City of New York*, Nos. 09 cv 8, 09 cv 9 (JBW) 2009WL 4263362 (EDNY November 25, 2009), the federal court stated that an “ informal inquiry by this court and among the judges of this court, as well as knowledge of cases in other federal & state courts has revealed anecdotal evidence of repeated, widespread falsification by arresting officers of the NYPD.

44. Despite the foregoing, the City of New York exercised deliberate indifference to the aforementioned abuses against civilians such as the plaintiffs by failing to take remedial action. The City failed to properly train, retain supervise discipline and monitor the defendants ad other members of the service guilty of similar abuses.

45.. The City’s failure to act resulted in a violation of the plaintiff’s constitutional rights

46. At all times material to this complaint, defendant THE CITY OF NEW YORK had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

47. At all times material to this complaint, defendant THE CITY OF NEW YORK failed to properly train, screen, supervise, or discipline employees and police officers, and failed to inform the individual defendants’ supervisors of their need to train, screen, supervise or discipline the individually named defendants . The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff’s constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

48. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional injury, pain and suffering, great humiliation, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, the plaintiff respectfully preys to the court for judgment upon each cause of action as follows:

- a. Compensatory damages in an amount which this Court shall consider to be just and fair;
- b. Punitive and exemplary damages in an amount which this Court shall consider to be just & fair;
- c. Attorney's fees in an amount which this Court shall consider just & fair;
- d. Together with the costs and disbursements of this action and such other and further relief which this Court may seem just & proper.

DATED: BROOKLYN, NY

March 31, 2012.

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